

§ 821. Originating proceedings. 1. A proceeding under this article is originated by the filing of a petition containing the following:

(a) An allegation that the respondent assaulted or attempted to assault his or her spouse, or former spouse, parent, child or other member of the same family or household or engaged in disorderly conduct, harassment, sexual misconduct, forcible touching, sexual abuse in the third degree, sexual abuse in the second degree as set forth in subdivision one of section 130.60 of the penal law, stalking, criminal mischief, menacing, reckless endangerment, criminal obstruction of breathing or blood circulation, strangulation, identity theft in the first degree, identity theft in the second degree, identity theft in the third degree, grand larceny in the fourth degree, grand larceny in the third degree, coercion in the second degree or coercion in the third degree as set forth in subdivisions one, two and three of section 135.60 of the penal law, toward any such person;

(b) The relationship of the alleged offender to the petitioner;

(c) The name of each and every child in the family or household and the relationship of the child, if any, to the petitioner and to the respondent;

(d) A request for an order of protection or the use of the court's conciliation procedures; and

(e) An allegation as to whether any accusatory instrument alleging an act specified in paragraph (a) of this subdivision has been verified with respect to the same act alleged in the petition. Appended to the copy of the petition provided to the petitioner shall be a copy of the notice described in subdivision five of section eight hundred twelve of this article.

2. When family court is not in session, an arrest and initial appearance by the defendant or respondent may be in a criminal court, as provided in sections one hundred fifty-four-d and one hundred fifty-five of this act.